

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Richard Suares	:
	:
	Date Purchased:
	Date Filed:
Plaintiff,	:
	SUMMONS
-against-	:
City of New York, New York City Police Department,	:
Detective Keith Kealy, Shield 02948 of the Midtown South	:
Precinct and New York City Police Officers John Doe,	:
Defendant.	:
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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in New York County.

Plaintiff designates New York County as venue of trial.

Dated: March 9, 2024
Bronx, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Jason A. Steinberger, Esq.
Attorney for Plaintiff
888 Grand Concourse
Suite 1H
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Detective Keith Kealy, Shield 02948 of the Midtown South Precinct an

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

Richard Soares,

:

Plaintiffs

:

VERIFIED COMPLAINT

-against-

:

City of New York, New York City Police Department,
Detective Keith Kealy, Shield 02948 of the Midtown South
Precinct and New York City Police Officers John Doe,

:

:

:

Defendants

-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Richard Soares (hereinafter referred to as "SUARES") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Detective Keith Kealy, Shield 02948 of the Midtown South Precinct (hereinafter referred to as "KEALY") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, the New York City Police Officers John Doe (hereinafter referred to as "DOES") were employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

6. On or after May 2, 2023 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

7. That on or about November 7, 2023 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

8. That on or about January 17, 2023 at 5:00 AM in the vicinity of 630 Concord Avenue, Bronx NY, Plaintiff was at home when KEALY handcuffed and arrested him.

9. That at no time did KEALY have information sufficient to justify arresting Plaintiff.

10. That at no time on January 1, 2023 did Plaintiff engage in any criminal or unlawful behavior.

11. That at no time on January 1, 2023 did Plaintiff promote gambling.

12. That at no time on January 1, 2023 did Plaintiff work together with anyone in a game of chance.

13. That at no time was Plaintiff working together with anyone in a game of chance.

14. That after Plaintiff was arrested, he was transported to the Midtown South Precinct.

15. That while Plaintiff was held in the Midtown South Precinct he was confined to a cell with numerous other male prisoners.

16. That after being held in the Midtown South Precinct, he was subjected to a strip search and nothing of an unlawful nature was recovered.

17. That after spending several hours in Midtown South Precinct, Plaintiff was transported to New York County Central Booking located at 100 Centre Street, New York, NY.

18. That while at New York County Central Booking, Plaintiff was held in a cell with numerous other prisoners for several hours.

19. That on or January 18, 2023, Plaintiff was arraigned on docket CR-002045-22NY wherein he was charged with Promoting Gambling in the Second Degree and Three Card Monte Prohibited.

20. That at the arraignment, Plaintiff was released and ordered to return to court.

21. That on and between January 18, 2023 and April 28, 2023 Plaintiff made numerous court appearances until the matter was dismissed upon application of the Office of the New York County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

22. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 21, as if more fully stated herein at length.

23. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

24. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

25. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

26. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

27. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

28. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.

29. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

30. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

31. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.

32. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

33. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.

34. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

35. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

36. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, KEALY and DOES persisted in their false claim that Plaintiff promoted gambling and worked with others in a three card monte game when they knew he did not.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. At all times pertinent hereto, KEALY and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

39. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that KEALY and DOES committed within the scope of her employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. The City of New York and New York City Police Department's failure to provide adequate training and supervision to KEALY and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

42. That the City of New York and New York City Police Department were aware that KEALY was on the Adverse Credibility List on or before January 17, 2023 and yet they continued to employ KEALY

43. That the City of New York and New York City Police Department were aware that there were (10) Civilian Complaint Review Board allegation of misconduct made against KEALY and despite such, they continued to employ KEALY.

44. That the City of New York and New York City Police Department were aware that KEALY was the subject of a civil rights lawsuit, Ricky Cleckley v. City of New York et al, index number 150849/2018 filed in Supreme Court, New York County and despite such, they continued to employ KEALY.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

45. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 44 as if more fully stated herein at length.

46. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

47. Upon information and belief, the City of New York and New York City Police Department maintained a policy and practice of claiming that people were involved in games of chance, so that police could arrest could arrest them, despite police knowing they were not involved.

48. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger
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Attorney for Plaintiffs
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(718) 585-2833

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: March 9, 2024

Jason Steinberger
Jason A. Steinberger